

Far-Western University Act, 2010

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 14

Sudurpashchim University Act, 2067

Date of Certification and Publication

2067.03.03

Amending Acts

1. Act Amending Some Nepal Acts, 2072 2072.11.13
2. Act Made to Amend Some Nepal Acts Relating to Education, 2077 2077.03.11
3. Act Amending Some Nepal Acts, 2082 2082.04.14

Act No. 1 of the year 2067

An Act Made to Make Provision Relating to Sudurpashchim University

Preamble: Whereas, it is desirable to make necessary provisions relating to the establishment and operation of Sudurpashchim University with investment of the Government of Nepal, in order to supply skilled human resources for national development by making available, in an accessible manner, quality and standard higher education opportunities to people of all regions through study, teaching and research in arts, science, medical science, law, management, education, technical and other professional subjects, and to make the country's educational and academic environment even more clean, dignified and productive while enhancing the quality of higher education on the basis of competition in accordance with the concept of a multi-university system;

Now, therefore, the Constituent Assembly has enacted this Act pursuant to subsection (1) of section 83 of the Interim Constitution of Nepal, 2063. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Sudurpashchim University Act, 2067".
- (2) This Act shall commence immediately. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "University" means the Sudurpashchim University established pursuant to section 3. (b) "Assembly" means the University Assembly pursuant to section 7. (c) "Academic Council" means the Academic Council pursuant to section 10. (d) "Executive Council" means the Executive Council pursuant to section 12. (e) "Service Commission" means the Service Commission pursuant to section 21. (f) "Faculty" means the Faculty pursuant to section 14. (g) "Research Centre" means the Research Centre pursuant to section 15. (h) "Faculty Board" means the Faculty Board pursuant to section 16. (i) "Campus" means a constituent campus of the University, and the term also denotes a campus affiliated by the University. (j) "Curriculum Development Centre" means the Curriculum Development Centre pursuant to section 18. (k) "Chancellor" means the Chancellor pursuant to section 22. (l) "Vice-Chancellor" means the Vice-Chancellor pursuant to section 23. (m) "Rector" means the Rector pursuant to section 24. (n) "Registrar" means the Registrar pursuant to section 25. (o) "Dean" means

the head of a Faculty. (p) "Director" means the Director pursuant to section 27. (q) "Teacher" means Professor, Associate Professor, Reader and Assistant Professor who impart education or conduct or cause to conduct research at the University, and the term also denotes instructors at various levels of the University and persons designated as teachers by rules made under this Act. (r) "Employee" means a person, other than a teacher, who performs or causes to perform managerial and supportive functions in relation to the operation of the University. (s) "Student" means a female or male student enrolled in a campus for study or research. (t) "Prescribed" or "as prescribed" means prescribed or as prescribed in rules made under this Act.

Chapter-2 Establishment of the University

3. Establishment of the University: (1) Sudurpashchim University is established for the purpose of carrying out study, teaching and research in arts, science, medical science, law, management, education, technical and other professional subjects. (2) At the time of commencement of this Act, this University shall be established at the same premises, incorporating jointly Siddhanath Science Campus, Bhimdattannagar, operated as a constituent campus of Tribhuvan University in Bhimdattannagar Municipality, Kanchanpur District, receiving grant from the Government of Nepal, and the affiliated Siddhanath Multiple Campus, Bhimdattannagar. 4.

University to be an Autonomous and Corporate Body: (1) The University shall be an autonomous and corporate body with perpetual succession. (2) The University shall have a separate seal for all its acts and business. (3) The University may, like an individual, acquire, use, sell or otherwise dispose of movable and immovable property. (4) The University may, like an individual, file and defend lawsuits in its name. (5) The University may, like an individual, make contracts and exercise rights and fulfill liabilities under such contracts.

Chapter-3 Organization of the University and Office Bearers

5. Organization of the University: The organization of the University shall be as follows, and the collective form thereof shall constitute the University:- (a) Assembly (b) Academic Council (c) Executive Council (d) Service Commission (e) Faculties (f) Research Centres (g) Faculty Boards (h) Campuses (i) Other bodies as prescribed.

6. Office Bearers of the University: The University shall have the following office bearers:- (a) Chancellor (b) Vice-Chancellor (c) Rector (d) Chairperson of the Service Commission (e) Registrar (f) Deans (g) Directors (h) Campus Chiefs (i) Other office bearers as prescribed.

Chapter-4 Formation, Functions, Duties and Powers of the Assembly

7. Formation of the Assembly: (1) There shall be an Assembly as the supreme body of the University. (2) The Assembly shall be constituted as follows:- (a) Chancellor ? Chairperson (b) Vice-Chancellor ? Vice-Chairperson (c) Rector ? Member (d) Member, National Planning Commission (looking after education) ? Member (e) Chairperson, University Grants Commission ? Member (f) Two from among the Rectors of other universities ? Member (g) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Secretary, Ministry of Education, Science and Technology ? Member (h) Secretary, Ministry of Finance ? Member (i) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Chief Secretary of the concerned Provincial Government ? Member (j) Dean ? Member (k) Directors ? Member (l) Two from among the Campus Chiefs ? Member (m) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Two teachers on an inclusive basis ? Member (n) Omitted by the Act Amending Some Nepal Acts, 2072 (o) Mayor of the Municipality of the area where the University is located ? Member (p) Central President of the Nepal Professors Association ? Member (q) President of the University Professors Association ? Member (r) President of the University Free Students Union ? Member (s) Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077.

Three from among the donors, on an inclusive basis, including at least one woman ? Member

(t) One from among educationists and social workers ? Member

(u) One from among employee representatives ? Member

(v) Registrar ? Member-Secretary

(3) Nomination of members other than the ex-officio members pursuant to sub-section (2) shall be made by the Chancellor on the recommendation of the Executive Council.

(4) The term of office of nominated members pursuant to sub-section (2) shall be three years.

(5) If the office of a nominated member falls vacant for any reason, another person shall be nominated for the remaining period after completing the procedure pursuant to sub-section (3). 8. Meeting of the Assembly: (1) A meeting of the Assembly shall be held at least twice a year compulsorily.

(2) The meeting of the Assembly shall be held at the date, time and place specified by the Chairperson of the Assembly.

(3) The Member-Secretary of the Assembly shall give notice to all members of the Assembly, along with the agenda of subjects to be discussed in the meeting, at least fifteen days before the meeting.

(4) If more than fifty percent of the total number of existing members are present in the Assembly, the quorum shall be deemed to be complete for the meeting.

(5) The meeting of the Assembly shall be chaired by the Chairperson of the Assembly, in the absence of the Chairperson by the Vice-Chairperson of the Assembly, and in the absence of both the Chairperson and Vice-Chairperson by the Rector.

(6) The opinion of the majority shall prevail in the meeting of the Assembly, and in case of a tie, the person chairing the meeting shall cast the deciding vote. Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. (7) The person chairing the meeting of the Assembly shall certify the decision of the meeting. Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. (7a) The Registrar shall keep a record of the decisions or orders of the Assembly. A copy of such decision or order shall be forwarded to the Chancellor.

(8) Other procedures relating to the meeting of the Assembly shall be as determined by the Assembly itself.
9.

Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows:- (a) to determine the policy of the University, (b) to provide guidance to the University and its subordinate bodies, (c) to determine the degrees to be awarded by the University and to award such degrees, (d) to approve the long-term plan, annual budget and programs of the University, (e) to pass rules relating to the University, (f) to discuss the annual report of bodies under the University and evaluate their programs, (g) to discuss and approve the audit report of the University, (h) to form various committees, sub-committees or task forces as required, (i) to perform other functions as prescribed. Chapter-5 Formation, Functions, Duties and Powers of the Academic Council 10. Formation of the Academic Council: (1) There shall be an Academic Council to act as the body to manage the educational and academic work of the University. (2) The Academic Council shall be constituted as follows:- (a) Rector - Chairperson (b) Registrar - Member (c) Deans - Members (d) Three from among the Chairpersons of various subject committees of the University - Members (e) One from among the Campus Chiefs - Member (f) One from among the teachers - Member (g) Two from among distinguished scholars - Members (h) A Dean designated by the Rector from among the Deans - Member-Secretary (3) Nomination of members other than the ex-officio members pursuant to sub-section (2) shall be made by the Rector. (4) The term of office of nominated members pursuant to sub-section (2) shall be three years. (5) If the office of a nominated member of the Academic Council falls vacant for any reason, another person shall be nominated for the remaining period after

completing the procedure pursuant to sub-section (3). (6) The procedure relating to the meeting of the Academic Council shall be as prescribed, and until so prescribed, the procedure relating to the meeting may be determined by the Academic Council itself. 11.

Functions, Duties and Powers of the Academic Council: The functions, duties and powers of the Academic Council shall be as follows:- (a) to determine and approve the curriculum of the University, (b) to specify the type of examinations to be conducted under the University, (c) to determine and maintain the academic quality of the University, (d) to formulate a research policy and approve research programs, (e) to specify the qualifications required for admission, the number of student admissions and the basis for admission in subjects to be studied and taught at the University, (f) to give advice and counsel to the Executive Council on academic matters, (g) to recommend to the Assembly for honorary degrees to be awarded by the University, (h) to perform other functions as prescribed. Chapter-6 Formation, Functions, Duties and Powers of the Executive Council 12. Formation of the Executive Council: (1) There shall be an Executive Council to act as the executive body of the University. (2) The Executive Council shall be constituted as follows:- (a) Rector - Chairperson (b) One from among the Deans - Member (c) One from among the Campus Chiefs who are members of the Assembly - Member (d) One from among the teachers - Member (e) Registrar - Member-Secretary (3) Nomination of members other than the ex-officio members pursuant to sub-section (2) shall be made by the Assembly on the recommendation of the Rector. (4) The term of office of nominated members pursuant to sub-section (2) shall be three years. (5) If the office of a nominated member falls vacant for any reason, another person shall be nominated for the remaining period after completing the procedure pursuant to sub-section (3). (6) The procedure relating to the meeting of the Executive Council shall be as prescribed, and until so prescribed, the procedure relating to the meeting may be determined by the Executive Council itself. 13.

Functions, Duties and Powers of the Executive Council: The functions, duties and powers of the Executive Council shall be as follows:- (a) to implement and cause to implement the decisions and directives of the Assembly, (b) to prepare the annual program, budget, progress report, audit report and other proposals of the University and submit them to the Assembly for approval, (c) to operate, supervise and preserve the fund and movable and immovable property of the University, (d) subject to the policy directives of the Assembly, to sell, lease out, and take on lease the movable and immovable property of the University, (e) to coordinate, supervise and inspect programs conducted by the University and submit a report thereof to the Assembly, (f) to prepare drafts of rules relating to the University and submit them to the Assembly for approval, (g) to appoint and promote teachers and employees required for the University on the recommendation of the Service Commission, (h) to determine student fees, (i) to accept financial and other assistance provided for the University, (j) to perform other functions as prescribed. Chapter-7 Faculties, Research Centres and Other Bodies 14. Faculties: (1) For higher education conducted by the University, there shall be faculties as prescribed in prescribed subjects including arts, science, medical science, law, management, education. (2) The functions, duties and powers of a Faculty shall be as prescribed. 15. Research Centres: (1) The University may establish Research Centres as necessary for conducting research in subjects including arts, science, medical science, law, management, education. (2) Provisions relating to the establishment, functions, duties, powers and operation of a Research Centre shall be as prescribed. 16. Faculty Board: (1) In each Faculty, there shall be a Faculty Board as prescribed for the operation of educational and academic programs. (2) There shall be subject committees as prescribed under the Faculty Board. (3) The functions, duties and powers of the Faculty Board and the committees under it, and the procedure relating to meetings, shall be as prescribed. 17. Campus: (1) The University may establish and operate Campuses as necessary for providing higher education in various subjects. (2) Provisions relating to the establishment and operation

of a Campus shall be as prescribed. 18. Curriculum Development Centre: (1) There shall be a Curriculum Development Centre for the determination and development of curricula of various subjects to be studied and taught at the University. (2) The establishment, functions, duties and powers of the Curriculum Development Centre shall be as prescribed. 19.

Affiliation with the University: (1) If any campus of the private sector desires to be affiliated with the University and operate, the University may grant affiliation to such campus as prescribed. (2) A campus obtaining affiliation pursuant to sub-section (1) shall comply with the conditions prescribed by the University. 20. Special Provision Relating to Operation of Campuses of Other Universities: (1) If a constituent or affiliated campus of any university submits an application, along with the recommendation of the management committee, to be associated with the University and remain as a constituent or affiliated campus, the process for recognizing such campus as a constituent or affiliated campus of the University shall be initiated. (2) The process pursuant to sub-section (1) shall be as prescribed by the University. (3) After a campus is operated as a constituent campus of the University pursuant to sub-section (1), the property in the name of such campus shall also transfer to the constituent campus of the University. (4) After a campus is operated as a constituent campus of the University pursuant to sub-section (1), the teachers and employees working in such campus shall remain as teachers and employees of the constituent campus of the University. (5) If any teacher or employee does not wish to remain as a teacher or employee of the constituent campus of the University pursuant to sub-section (4), he/she shall inform the concerned university within one year, as determined by the Assembly or with the approval of the concerned university, and in such a case, the University may, after consulting with the concerned university, engage such teacher or employee as a teacher or employee of the University. (6) The permanent service rendered by a teacher or employee in the concerned campus who remains as a teacher or employee of the constituent campus of the University pursuant to sub-section (4) shall be deemed to be service rendered in a constituent campus under the University, and their service period shall be calculated accordingly. (7) If any teacher or employee remains in the constituent campus of the University pursuant to sub-section (4) or (5), no change shall be made to their previous salary, facilities and service conditions to their detriment. Chapter-8 Service Commission 21.

Service Commission: (1) There shall be a Service Commission for recommending the appointment and promotion of teachers and employees of the University. (2) The Service Commission shall be constituted as follows:- (a) Person appointed by the Chancellor ? Chairperson (b) Member of the Public Service Commission ? Member (c) One from among the teachers ? Member (3) To recommend for the appointment of the Chairperson and member pursuant to clauses (a) and (c) of sub-section (1), a committee shall be formed by the Chancellor consisting of two members of the Assembly under the chairpersonship of the Vice-Chancellor, and the Chairperson and member shall be appointed by the Chancellor on the recommendation of that committee. (4) The term of office of the Chairperson and member appointed pursuant to sub-section (3) shall be four years. (5) Other functions, duties and powers of the Service Commission shall be as prescribed. (6) The remuneration, facilities and other service conditions of the Chairperson and members of the Service Commission shall be as prescribed. (7) The procedure relating to the meeting of the Service Commission shall be as prescribed, and until so prescribed, the procedure relating to the meeting may be determined by the Service Commission itself. Chapter-9 Office Bearers, Teachers and Employees of the University 22. Chancellor: (1) The Prime Minister shall be the Chancellor of the University. (2) The Chancellor shall be the head of the University. In the presence of the Chancellor, he/she shall preside over the convocation ceremony of the University. (3) The Chancellor may, as required, inspect the University and give directives to the University. 23. Vice-Chancellor: (1) The Minister or Minister of State for Education, Science and Technology shall be the Vice-Chancellor of the University. The Minister or Minister of State for

Education, Science and Technology shall be the Vice-Chancellor of the University. (2) In the absence of the Chancellor, the Vice-Chancellor shall preside over the convocation ceremony of the University. (3) The Vice-Chancellor may, as required, inspect the University and give directives to the University. 24.

Rector: (1) The Rector shall be the chief office bearer working full-time at the University. (2) To recommend for appointment to the post of Rector, the Chancellor shall form a three-member committee including the Secretary of the Ministry of Education, Science and Technology from among the members of the Assembly. shall form a three-member committee including the Secretary of the Ministry of Education, Science and Technology. (3) The committee pursuant to sub-section (2) shall recommend the names of three qualified persons for appointment to the post of Rector, and the Chancellor shall appoint the Rector from among the persons so recommended. (4) The Rector shall have general control over all acts and business of the University, and he/she may give directives and supervise the acts and business of the University. (5) The term of office of the Rector shall be four years. (6) In the absence of the Chancellor and Vice-Chancellor, the Rector shall preside over the convocation ceremony of the University. (7) The Rector shall implement and cause to implement the decisions and directives of the Assembly. (8) The Rector shall perform functions other than those mentioned to be performed by any body or authority under this Act or rules made under this Act. The Rector shall immediately inform the Chancellor of such function and shall cause it to be ratified by the next meeting of the Assembly. (9) In the absence of the Rector, his/her work shall be as arranged by the Chancellor. (10) Other functions, duties and powers, remuneration, facilities and other service conditions of the Rector shall be as prescribed. 25. Registrar: The Registrar shall be appointed by the Chancellor on the recommendation of the Rector. 26. Dean: The Dean shall be appointed by the Executive Council. 27. Director: (1) There shall be separate Directors to act as the heads of the Research Centre and the Curriculum Development Centre. (2) The Director shall be appointed by the Executive Council. 28. Functions, Duties and Powers, Remuneration, Facilities and Service Conditions of Registrar, Dean and Director: (1) The Registrar, Dean and Director shall be office bearers working full-time at the University. (2) The term of office of the Registrar, Dean and Director shall be four years. (3) The functions, duties, powers, remuneration, facilities and other service conditions of the Registrar, Dean and Director shall be as prescribed. 29. Other Office Bearers: (1) The University shall have other office bearers as prescribed. (2) The appointment, functions, duties and powers, remuneration, facilities and service conditions of the office bearers pursuant to sub-section (1) shall be as prescribed. 30.

Removal from Office: (1) If one-fourth of the existing members of the Assembly submit a written application to the Chancellor to remove the Rector, Chairperson of the Service Commission or Registrar on the ground that he/she has not fulfilled the responsibility according to his/her post, has not worked honestly, or has not conducted himself/herself in a manner befitting the post, the Chancellor shall form a three-member investigation committee consisting of a member of the University Grants Commission and the Secretary of the Ministry of Education, Science and Technology under the chairpersonship of any member of the Assembly. shall form a three-member investigation committee consisting of a member of the University Grants Commission and the Secretary of the Ministry of Education, Science and Technology. (2) The investigation committee formed pursuant to sub-section (1) shall conduct necessary investigation in that regard and submit its report to the Chancellor within thirty days. (3) After receiving the report pursuant to sub-section (2), the Chancellor shall submit the report to the Assembly. (4) If, during discussion on the report submitted pursuant to sub-section (2), the Assembly decides to remove the Rector, Chairperson of the Service Commission or Registrar from office, the Chancellor shall remove such Rector, Chairperson of the Service Commission or Registrar from office. Provided that, before so removing, he/she shall not be deprived of an opportunity to present a defense. (5) The procedure to be adopted while investigating or removing other

office bearers of the University, other than the Rector, Chairperson of the Service Commission or Registrar, on the charge pursuant to sub-section (1), shall be as prescribed. (6) If an investigation is initiated against any office bearer pursuant to this section, he/she shall not be entitled to perform the work of the post he/she holds until the final decision thereof. Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. (7) For the purpose of performing the daily work to be done by the office bearer pursuant to sub-section (6), the Chancellor may assign responsibility to any office bearer of the University. 31. Provisions Relating to Teachers and Employees: (1) The University shall have the required number of teachers and employees. (2) The appointment, functions, duties and powers, remuneration, facilities and service conditions of the teachers and employees pursuant to sub-section (1) shall be as prescribed. Chapter-10 Fund, Accounts and Audit of the University 32.

Fund of the University: (1) The University shall have its own separate fund, and the following amounts shall be in such fund:- (a) Amount received from the Government of Nepal, (b) Amount received from the University Grants Commission, (c) Amended by the Act Amending Some Nepal Acts, 2072. Amount received from the local level, (d) Amount provided by any person or institution as donation, gift, charity and financial assistance, (e) Amount received as support or grant from persons or institutions associated with industry, trade or business, (f) Amount received as support or loan from international associations, organizations, foreign persons, governments, agencies or financial institutions, (g) Amount received from fees and any other source. (2) The University shall obtain prior approval of the Government of Nepal while receiving any amount pursuant to clause (f) of sub-section (1). (3) The amount of the University's fund shall be deposited by opening an account in any commercial bank specified by the Executive Council. (4) The operation of the University's fund and account shall be as prescribed. (5) All expenses of the University shall be borne from the fund pursuant to sub-section (1) as approved by the Assembly. 33. Accounts and Audit: (1) The University shall maintain its income and expenditure accounts according to the accounting system adopted by the Government of Nepal. (2) The University shall make arrangement for an internal control system as prescribed in relation to accounts. (3) The audit of the University shall be conducted by the Auditor General. Chapter-11 Miscellaneous 34. Certificate and Degree Amended by the Act Amending Some Nepal Acts, 2062. and Recognition: (1) The University may award certificates and degrees as prescribed to students, trainees or researchers who have attained higher education in prescribed subjects, and may confer honorary degrees to persons who conduct research or perform commendable work in the academic field. Amended by the Act Amending Some Nepal Acts, 2062. (2) The University may recognize academic degrees of other universities or educational institutions. 35. Qualification Required for Admission to the University: (1) The qualification of students or researchers to be admitted to the University shall be as prescribed. (2) While admitting students, the University shall, in accordance with the policy of the Government of Nepal, reserve seats for admission for students from women, indigenous/nationalities, Madhesi, Dalit, persons with disabilities, backward class or community on the basis of a prescribed percentage. Added by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. 35a.

Free Higher Education and Scholarship: (1) Higher education shall be free for Dalit, marginalized, disabled and economically poor students who fulfill the criteria prescribed by the University and are admitted to the University or its constituent and community educational institutions. (2) For the purpose of sub-section (1), other provisions relating to basis, criteria, classification shall be as prescribed by the Government of Nepal by publishing a notice in the Nepal Gazette. Amended by the Act Amending Some Nepal Acts, 2062. (3) A student may avail of the facility pursuant to sub-section (1) only once at each level. (4) Notwithstanding anything contained in any other law, seats shall be reserved as prescribed for Dalit students for admission in technical and professional higher education. (5) The University shall make provision for higher education for

the sons and daughters of martyrs, disappeared persons and persons with disabilities as provided for in the prevailing law. (6) A student who has studied in a community school from grade six to grade ten shall receive a scholarship in higher education as per the prevailing law. 36. To Act in Accordance with National Education Policy: It shall be the duty of the University to conduct its functions in accordance with the national education policy of the Government of Nepal. 37. Acts and Business Not to be Invalidated: No act or business of the University shall be invalidated merely by reason of the vacancy of the position of any office bearer or member, or any defect in the appointment or nomination of any office bearer or member. 38. Protection of Acts Done in Good Faith: No lawsuit or other action shall be instituted against the University or any office bearer of the University in relation to any act done or sought to be done in good faith pursuant to this Act or rules made under this Act. 39. Prior Approval of Government of Nepal Required: The University shall obtain the approval of the Ministry of Finance of the Government of Nepal before approving the post of any office bearer, teacher or employee that creates a financial liability on the Government of Nepal, or before increasing the remuneration and service facilities of such office bearer, teacher or employee. 40.

Delegation of Powers: (1) The Assembly may, as required, delegate some of the powers conferred to it pursuant to this Act or rules made under this Act to the Academic Council, Executive Council or Rector. (2) The Academic Council may, as required, delegate some of the powers conferred to it pursuant to this Act or rules made under this Act to the Faculty Board. (3) The Executive Council may, as required, delegate some of the powers conferred to it pursuant to this Act or rules made under this Act to any office bearer or committee of the University. (4) The Service Commission may, as required, delegate some of the powers conferred to it pursuant to this Act or rules made under this Act to any committee or office bearer of the University. 41. Contact with Government of Nepal: While contacting the Government of Nepal, the University shall do so through the Amended by the Act Made to Amend Some Nepal Acts Relating to Education, 2077. Ministry of Education, Science and Technology. 42. Provision Relating to Dissolution of the University: (1) If the University cannot be operated for any reason, the Government of Nepal may dissolve the University on the recommendation of the Assembly. (2) If the University is dissolved pursuant to sub-section (1), the movable and immovable property of the University shall vest in the Government of Nepal. 43. Power to Make Rules: The University may make necessary rules for the implementation of the objectives of this Act.